ROBINSONS LAND
CORPORATION

La Union

April 08, 2022

Mr. Adrian Dimacali
Director
MARY GRACE FOODS, INC.
Mary Grace Cafe
Lot 7 Blk 4 Marian Road 2, Marian Business Park
San Martin De Porres, Parañaque City

LEASE PROPOSAL

Dear Mr. Dimacali,

We are pleased to offer you a space at **Robinsons Place La Union.** Please find below the terms and conditions for the lease of the said space.

TRADENAME	: Mary Grace Cafe
NATURE/DESCRIPTION OF ESTABLISHMENT	: Restaurants: Casual Dining
LOCATION	: Level 1 Unit 107, Level 1 Unit 107 Al Fresco Area

Note:

Al Fresco Area not included in aircon charges.

Breakdown:

Unit 107 - 179.13 sqm
Al Fresco - 32.65 sqm
Total - 211.78 sqm

LEASE TERM

Commencement Date	: Nov 05 2022 or first day of operation whichever comes first.
Termination Date	: Nov 30 2027
Turnover Date	: Jun 01 2022 subject to final confirmation from the Lessor

APPROXIMATE FLOOR AREA :
211.78 sqm

PERCENTAGE (%) RENT — Six Percent (6.00%) rent based on Actual sales or Minimum Monthly Gross Sales, whichever is higher.

Year	Start Date	End Date	Min. Rent (Php)*	Min. Monthly Gross Sales/sqm*
1	11/05/2022	11/04/2023	1,005.00	16,750.00
2	11/05/2023	11/04/2024	1,055.00	17,583.33
3	11/05/2024	11/04/2025	1,108.00	18,466.67
4	11/05/2025	11/04/2026	1,165.00	19,416.67
5	11/05/2026	11/30/2027	1,225.00	20,416.67

OTHER EXPENSES CHARGEABLE

Common Usage Expenses (CUSA) : Php 130.00 /sqm/mo*.
Security, Maintenance, Electricity, and all other Common Area Expenses

LP#139153

Airconditioning Charges			
Rate per Tonnage	No. of Tonnage		Total Amount
Php 2,100.00 /TR	15		Php 31,500.00 /mo*

Pest Control, cashier's salary, advertising and promotional expenses and other individual services/utilities : at reasonable rates/amount to be determined by the LESSOR*

Advertising and Promotional Expenses/Marketing Support Fund : Php 20,000.00 /year*

* Subject to VAT

- All amounts herein stipulated may be subject to increase whenever the cost of any of the electricity, labor, water or common area and aircon-related expenses increase.
- The discounted monthly rate shall be the basis if the rent **is paid within the first 7th calendar days of the month** to which the rent corresponds. All amounts herein stated are exclusive of **Value Added Tax (VAT), Documents Stamps Tax and other taxes** which shall be for the account of the Lessee.
- Should Lessee decide to extend its operation beyond the regular mall operating hours. Lessee will be charged subsequent aircon / CUSA and other utility charges at a rate to be determined by the LESSOR. Lessee will have to secure the formal consent of the Lessor for its extension of operating hours.
- Should Lessee decide to install additional Fan Coil Units (FCU) in theirarea, an additional charge of Php2,150.00 ton/month (subject to increase) shall be billed to cover for the chilled water to be provided to the Lessee.

Repairs & Maintenance of Leased Premises, Equipment, Furniture : Lessee's Account

Expense for Individual Utilities : Lessee's Account

PC-POS : Lessee's Account
PC-POS Cabling Cost : Php 5,000.00 * For Lessee's Account
*subject to change

SECURITY DEPOSIT : One million two hundred seventy-seven thousand thirty-three Pesos and Forty centavos (Php 1,277,033.40)
(6 Months Regular Rent)

The Security deposit shall be forfeited in our favor upon a) cancellation of our agreement after you have signed and confirmed this Lease Proposal; b) failure to occupy the leased premises within 30 days from effectivity of the lease; c) termination of the contract for whatever reason prior to expiry date of the term or d) failure to commence store construction as stipulated cancellation clause.

It shall be understood that the security deposit shall only be refunded without interest after the expiration of the term of this lease and after you have satisfactorily vacated and completely delivered the leased premises to us, less whatever amounts you may owe us which may be applied against the security deposit.

INSURANCE : **CONTRACTOR'S ALL RISK INSURANCE**
Payable to Prudential Guarantee & Assurance Corp. or any RLC accredited bonding companies. Contractor's All Risk Insurance for bodily injury and property damage to third party for the duration of the construction required.

CONSTRUCTION DEPOSIT : **LESSEE'S ACCOUNT - Php 120,000.00**

1. **Construction/Renovation Deposit - Php 55,000.00**
   - If there is an existing meter, actual power & water consumption charges
   - If there is no existing meter, theoretical charges only
   - Housekeeping services - cleaning of common area affected by the construction
   - Plywood fencing - existing storefront (if applicable)
   - Uncertified construction violation penalty (if applicable)
   - Other construction damages that may occur (if applicable)
   - Security Guard on Post Fee - Rate to be determined by Mall Operation. Applicable for renovation /construction works that would be rendered after mall hours.
2. **Power/Water Meter Deposit - Php 50,000.00**
   - Actual amount may vary depending on the type of the meter to be installed. Excess payments to be refunded upon completion of tenant pre-operational checklist clearance. Meter deposit withheld refundable upon termination of Contract of Lease
3. **Performance Cash Bond - Php 15,000.00**
   - Refundable upon faithful compliance of all pre-operating requirements

Note:
A temporary clearance to operate may be given to tenants with minor unrectified construction violations. However, if violation/s are not rectified thirty (30) days after the date of issuance of temporary clearance, RLC will take over and rectify the violations and the rectification cost shall be deducted from the Performance Bond.

Other details:
Construction deposit and other related items for refund will be processed by Corp. Property Planning Dept. (CPPD) ONLY after fully accomplishing the Tenant Pre-Operational Checklist (TPOC) in coordination with the Mall Architect in-charge.
Net amount of all the charges shall be refunded by check or application to future charges in the name of the TENANT as indicated in the RLC Contract of Lease ONLY.

INTEREST/PENALTIES ON LATE PAYMENT:
All unpaid charges except space rental after due date shall be subject to an interest rate of three percent (3%) per month. The space rental shall also be subject of the same interest rate if it remains to be unpaid after the calendar month the rent pertains to. In addition, the LESSOR, at its opinion, may impose penalty of five percent (5%) per month, on all unpaid charges including interests for accounts over 60 days past due until full payment date.

CANCELLATION:
Should you fail to commence operation within thirty (30) days from effectivity of the lease, we shall have the right to unilaterally cancel this agreement and all deposits received by us will not be refunded. We therefore reserve the right to offer the same premises to a third party.

LEASE CONTRACT
This Lease Proposal, together with the attached General Terms and Conditions (Annex "A" hereof), embodies all the terms and conditions agreed upon by the parties and shall be binding upon them. The LESSEE or his/her representatives certify that they have read this or caused to be read to him/her, inclusive of its Annexes, and that he/she has fully understood the same.

Please be advised that we are also entertaining other parties to the space and eventual awarding of the space will be on a first confirmed - first reserve basis upon receipt of signed Lease Proposal and payment of Security Deposit.

Should our proposal be acceptable to you, kindly indicate your conformity by affixing your signature on the space provided below and return all copies of the same to us on or before April 28, 2022.

Very truly yours,

Majelle Marie A. Yu
Senior Lease Manager

CONFORME:
MARY GRACE FOODS, INC.

By: _____
Mr. Adrian Dimacali
Director

Noted By:

Joretta Pimentel - Jardeleza

Ma. Socorro D.L. Alvarez
Treasury Director

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES
(QUEZON CITY)S.S.
X----------X

SUBSCRIBED AND SWORN TO ME this _____ day of _____ 20 ____, affiants showing the following proof of identification

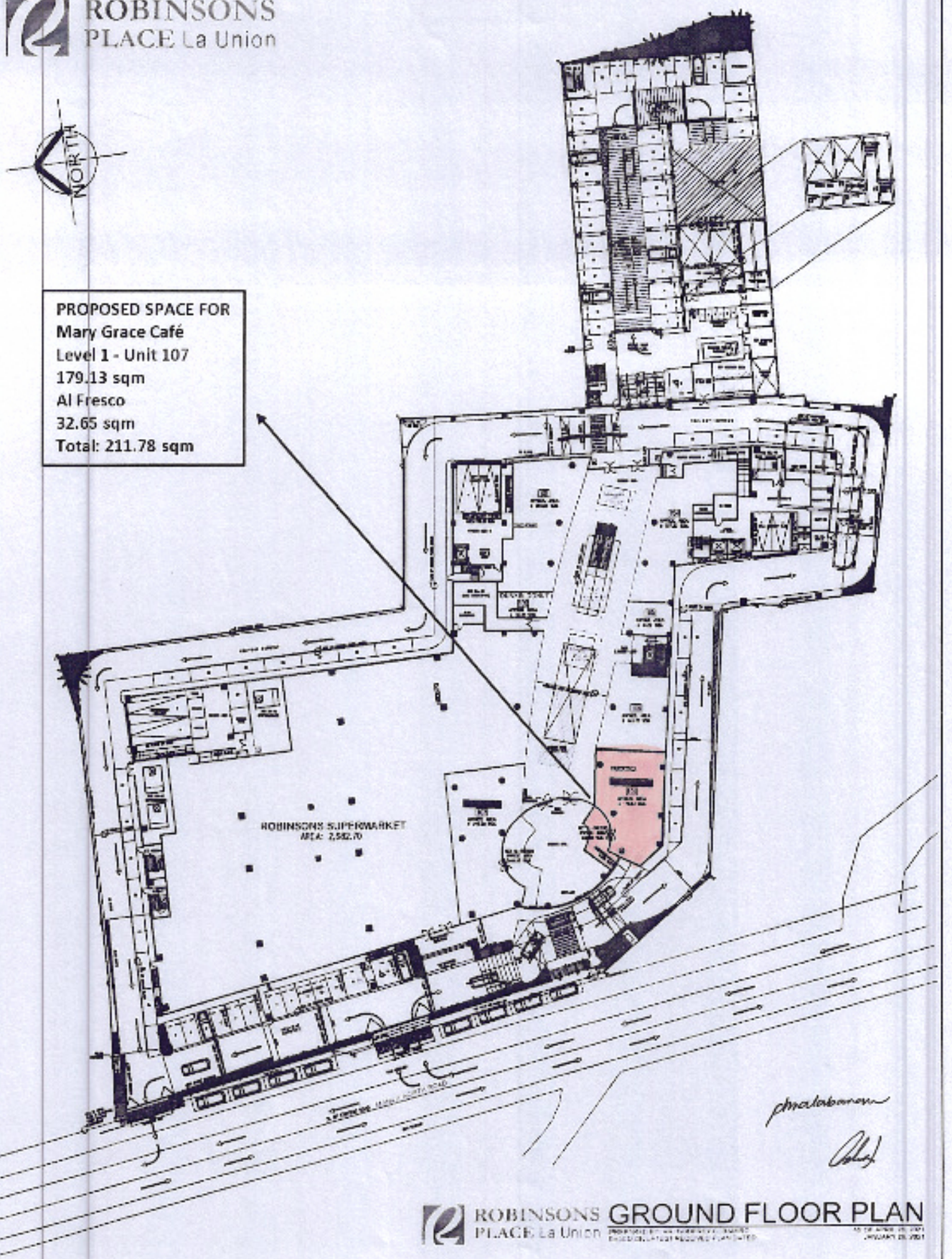
NAME	ID PRESENTED
1. Robinsons Land Corp.	
2. Joretta Pimentel - Jardeleza	TIN 121-854-546
3. Ma. Socorro D.L. Alvarez	TIN 175-884-602
4. Mr. Adrian Dimacali	

WITNESS my hand and seal.

Doc No. _____
Page No. _____
Book No. _____
Series of 20____.

LP#139153

ROBINSONS
PLACE La Union



ROBINSONS PLACE La Union GROUND FLOOR PLAN